

PROFESSIONAL ENGAGEMENT TERMS AGREEMENT (PETA)

This Professional Engagement Terms Agreement ("Agreement") sets forth the comprehensive terms, conditions, and expectations governing the professional collaboration between **VVD VidyaVardhani Private Limited** ("**Organization**") and the undersigned individual **Divya Nagar** ("**Associate**"). It establishes a clear framework outlining the roles, responsibilities, rights, and obligations of both parties to ensure a structured, transparent, and mutually beneficial working relationship.

This engagement is entered into with the Associate in the capacity of **Graphic Designer and Brand Identity Manager**, effective from **20 April 2026**, under a performance-driven and outcome-based structure as defined in this Agreement.

1. Nature of Engagement

- The Associate is engaged as an independent professional under this professional engagement only. Nothing in this Agreement shall be construed to create any employer-employee relationship.
- This Agreement is entered into in consideration of the professional opportunities, assignments, and access to resources provided by the Organization.

2. Scope of Responsibilities

The Associate agrees to:

- Perform assigned tasks and responsibilities as communicated by the Organization.
- Contribute to projects, operations, or initiatives relevant to their role.
- Maintain quality, accuracy, and consistency in all deliverables.
- Collaborate with team members and stakeholders to achieve shared objectives.
- Adapt to evolving requirements and responsibilities as needed.
- Maintain organized records and documentation related to assigned work.
- Stay updated with relevant knowledge, tools, or practices applicable to their role.
- Ensure timely communication regarding progress, challenges, and updates.

3. Performance Expectations

- Deliverables must meet defined quality and timeline standards.
- The Associate is expected to maintain professionalism, consistency, and accountability.
- Feedback and revisions must be addressed within reasonable timelines.
- Maintain clear and proactive communication with the Organization.
- Demonstrate adaptability and willingness to improve based on feedback.
- Ensure accuracy and attention to detail in all deliverables.

4. Compensation Structure

- Compensation shall be performance-based, aligned with deliverables and outcomes.
- Specific assignments may carry defined payouts upon successful completion.
- Payments shall be processed within 14 days from the date of approval of deliverables.

- Any delays in submission may impact compensation timelines.
- Additional incentives may be provided for exceptional performance or contributions.
- Payment terms and schedules will be communicated clearly for each assignment.
- The Organization reserves the right to withhold or revise compensation in cases of incomplete, unsatisfactory, or non-compliant deliverables.

5. Assignment-Based Engagement

- Work will be assigned on a project or task basis.
- Completion, quality, and impact of each assignment will determine continuation and future opportunities.
- The Associate is expected to accept or decline assignments within a reasonable timeframe.
- Clear deliverables and deadlines will be defined for each assignment.
- Repeated delays or incomplete work may affect future assignments.
- The Organization is not obligated to provide continuous assignments, and allocation of work shall be based on business requirements and performance.
- The Organization does not guarantee any minimum or maximum number of assignments or continuity of work under this Agreement.
- The Associate shall hand over all final approved deliverables along with editable/source files, including but not limited to Canva, Figma, PSD, AI, CDR, project files, exported creatives, captions, campaign files, and brand assets, wherever applicable.

6. Representation & Conduct

- The Associate shall uphold the values, integrity, and reputation of the Organization.
- The Associate shall ensure that all professional conduct aligns with the Organization's standards and interests.
- The Associate must ensure all work and communication align with the Organization's standards.
- Any external representation of the Organization must be approved where necessary.
- Any form of misrepresentation or inappropriate conduct may result in disciplinary or corrective measures.
- The Associate may continue developing their personal brand, DNP Studios, provided that VVD's brand identity, confidential materials, clients, teachers, campaigns, and internal strategies remain separate and are not used for personal brand promotion without prior written approval.

7. Use of Work & Rights

- The Organization retains full rights to use, modify, and distribute all work created during the engagement.
- The Associate may showcase work in their portfolio only with prior approval.
- Confidential or sensitive projects may not be displayed publicly.
- Proper credit must be given to the Organization where applicable.
- Unauthorized use or distribution of work is strictly prohibited.
- The Associate may showcase work created during the engagement in their personal professional portfolio only with prior written approval from the Organization, and only if such work has already been made public by the Organization and does not contain confidential, sensitive, internal, unpublished, client-specific, teacher-specific, or Organization-restricted information.

- The Associate hereby assigns all intellectual property rights in such work to the Organization.
- The Associate shall ensure that any third-party fonts, templates, images, music, stock assets, plugins, or tools used in deliverables are properly licensed and do not violate any third-party rights.

8. Confidentiality Alignment

- The Associate shall be bound by the terms of the Non-Disclosure Agreement (NDA), which shall form an integral part of this Agreement.
- All sensitive information must be handled responsibly.
- Confidential data must not be stored or shared on unsecured platforms.
- Any suspected breach must be reported immediately.
- Access to confidential information should be limited to necessary use only.

9. Termination of Engagement

- Either party may discontinue this engagement by providing reasonable written notice. The Organization may discontinue the engagement immediately in case of breach of agreement, misconduct, non-performance, misuse of confidential information, or violation of Organization policies. Final payments, if any, shall be processed only for completed, submitted, and approved work.
- Immediate termination may occur in case of:
 - Breach of agreement
 - Misconduct
 - Non-performance
- All pending deliverables must be handed over upon termination.
- The Associate must return or delete any Organization-owned data or assets.
- Final compensation will be processed based on completed and approved work.
- The Organization reserves the right to terminate this engagement immediately, without prior notice, in cases of breach, misconduct, non-performance, or actions detrimental to the Organization.

10. Conflict of Interest

- The Associate shall disclose any potential conflicts.
- Engagement with competing entities must not harm the Organization's interests.
- The Associate must avoid situations that may compromise objectivity or loyalty.
- Any external commitments that may affect performance should be communicated.
- Failure to disclose conflicts may result in termination.

11. Dispute Resolution

- Both parties agree to attempt resolution through mutual discussion in good faith prior to initiating legal proceedings.
- This Agreement shall be governed by the laws of India, and any disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts at Indore, Madhya Pradesh.
- Both parties agree to act in good faith to resolve conflicts.
- Documentation and communication records may be used for resolution.
- Escalation procedures may be followed if necessary.

12. Tax Responsibility

- The Associate shall be solely responsible for payment of all applicable taxes, including income tax and GST (if applicable), arising from payments received under this Agreement. The Organization shall not be liable for any such obligations.

13. Acknowledgement

By accepting this Agreement, the Associate confirms:

- Understanding of the scope and expectations.
- Agreement to all terms mentioned above.
- Commitment to maintaining professionalism and ethical conduct.
- Willingness to comply with all policies and guidelines set by the Organization.
- This Agreement constitutes the entire understanding between the parties and supersedes all prior discussions, communications, or agreements, whether written or oral.

14. Non-Exclusivity

This engagement is non-exclusive in nature, and the Associate may engage in other professional activities, provided such engagements do not conflict with the interests, confidentiality, or obligations of the Organization.

15. Amendments

Any modifications to this Agreement must be made in writing and mutually agreed upon by both parties.

16. Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Name (Associate): _____

Signature (Associate): _____

Date: _____

For VVD VidyaVardhani Private Limited

Name (Authorized Signatory): _____

Authorized Signatory: _____